

23STCV27584 23STCV27584

County: los-angeles

Division: Civil Law and Motion

Department: 415

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 16, 2026

CASE NUMBER

23STCV27584

MOTION

Motion for Sanctions

MOVING PARTIES

Plaintiffs Jane LA

Doe and Jane MA Doe

OPPOSING PARTY

Defendant Los Angeles Unified School District

MOTION

Plaintiffs Jane LA Doe and Jane MA Doe

("Plaintiffs") move for sanctions under Code of Civil Procedure sections 128.7

and 2023.030 against Defendant Los Angeles Unified School District

("Defendant"). Defendant opposes the

motion.

ANALYSIS

Plaintiffs have

lodged the entirety of their motion and all exhibits thereto under seal. Plaintiffs cite no authority which permits them to do so. Civil court proceedings

are presumptively open to the public. (Richmond

Newspapers, Inc. v. Virginia (1980) 448 U.S. 555, 580, fn. 17.) Before sealing records, "a trial court must

hold a hearing and expressly find that (i) there exists an overriding interest

supporting closure and/or sealing; (ii) there is a substantial probability that

the interest will be prejudiced absent closure and/or sealing; (iii) the

proposed closure and/or sealing is narrowly tailored to serve the overriding

interest; and (iv) there is no less restrictive means of achieving the

overriding interest." (NBC Subsidiary

(KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.)

Sealing the

entirety of their motion and all exhibits on which Plaintiffs rely as a basis

for sanctions is not narrowly tailored to protecting Plaintiffs' privacy

interests, especially as to matters that are already part of the public record

of this case. (See Savaglio v.

Wal-Mart Stores, Inc. (2007) 149 Cal.App.4th 588, 601.) As such, the Court cannot consider

Plaintiffs' motion, as Plaintiffs improperly lodged the motion under seal

without leave to do so. Thus, the motion

is denied without prejudice.

The only authority

Plaintiffs cite for lodging the motion and the exhibits in support thereof

under seal is Evidence Code section 783.

But the provision does not concern sealing of exhibits. As such, it is irrelevant.

In any event, the Court

cannot grant Plaintiff's motion based on authority other than the authority plaintiffs

cite in its notice of motion. (See Code

Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal. Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75 Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Plaintiffs are ordered to provide notice of the Court's ruling and to file proof of service of same.